

#	Case Name	Tentative
1	MVP Real Estate Group, LLC vs. Wondergreen, Inc. 2023-01308137	Motion to be Relieved as Counsel of Record The motion of attorney Joseph M. Adams from Adams & Pham APC to be relieved as counsel of record for defendant/cross-plaintiff MVP Real Estate Group, LLC is DENIED. On 10-29-24, the court continued the hearing on the Motion to allow moving attorney to comply with California Rules of Court, Rule 3.1362, subdivision (d) and serve the moving papers on all parties who have appeared in the case. Moving attorney was ordered to file a proof of service no later than 5 court days prior to the continued hearing. However, no proof of service has been filed with the court. Therefore, the Motion is DENIED. Moving attorney to give notice.
2	Lazane vs. Far 2024-01376481	1. Sarah Jane Lazane and Holly Marie Race's Motion for Relief from Default and Quash Service of Summons Plaintiff's Sarah Jane Lazane and Holly Race's Motion to Set Aside Default is GRANTED. Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473(b).) Here, default was entered on 7/3/24. Cross-Defendants filed their motions on 7/30/24. Thus, the motions are timely. As to Lazane and Race, Jesse Obrand filed an attorney declaration of fault. Jesse states that he and his father, Michael Obrand, work at the same law firm in separate cities. (Obrand Decl., ¶ 4.) Jesse did not work on the lawsuit and was not involved until he was named a defendant. (Obrand Decl., ¶ 4.) Michael was hospitalized after a motor vehicle accident on 5/15/24 and was unable to continue representing Lazane and Race while in the

hospital. (Obrand Decl., ¶ 5.) Jesse consulted the State Bar ethics counsel to determine if the firm could continue to represent Lazane and Race due to the firm and both Jesse and Michael being named as Cross-Defendants. (Obrand Decl., ¶ 7.) Jesse states that he failed to timely file an answer due to the hospitalization and ethical issues. (Obrand Decl., ¶ 8.)

Cross-Complainants argue the motions were not properly served because Jesse, who served the motion, is a party to the action pursuant to Code of Civil Procedure, section 414.10. However, Section 414.10 is inapplicable because it relates to service of summons, not service of motions.

Further, Defendants have failed to raise any legal grounds to disregard Jesse’s declaration of fault and fail to provide any admissible evidence to cast doubt on the declaration.

2. Obrand Law Group, Michael F. Obrand, and Jesse D. Obrand’s Motion for Relief from Default and Quash Service of Summons

Cross-Defendants Michael F. Obrand, Jesse D. Obrand, and Obrand Law Group’s Motion to Set Aside Default is GRANTED.

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473(b).)

Here, default was entered on 7/3/24. Cross-Defendants filed their motions on 7/30/24. Thus, the motions are timely. As to Jesse, Michael, and Obrand Law Group (collectively the Obrand Defendants), Lisa Angelo filed an attorney declaration of fault. Angelo states that she filed a declaration on 6/14/24 in support of automatic 30 day extension to file a responsive pleading. (Angelo Decl., ¶ 22.) Thus, she believed Obrand Defendants had until 7/15/24 to file a responsive pleading. (Angelo Decl., ¶ 22.) Angelo learned that the declaration was

		not accepted because her firm failed to pay the first appearance fee. (Angelo Decl., ¶ 23.) Cross-Complainants argue the motions were not properly served because Jesse, who served the motion, is a party to the action and they did not receive a mailed copy of the Obrand Defendants’ motion pursuant to Code of Civil Procedure, section 414.10. However, Section 414.10 is inapplicable because it relates to service of summons, not service of motions. Further, Defendants have failed to raise any legal grounds to disregard Angelo’s declaration of fault and fail to provide any admissible evidence to cast doubt on the declaration.
3	Salas vs. Monarch Capital Group, Inc. 2022-01279629	Plaintiff’s Motion to Compel Further Responses to Requests for Admissions, Set Two, and Request for Monetary Sanctions Plaintiff Jose Luis Salas’ Motion to Compel Further Responses to Requests for Admission, set two, is GRANTED. Defendant is ORDERED to provide further responses to Requests for 41-42 and 45-54 by January 10, 2025. Plaintiff’s request for sanctions is DENEID. “On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: [¶] (1) An answer to a particular request is evasive or incomplete. [¶] (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290(a).) Defendant responded to each request with objections that terms such as pool area or patron were vague and ambiguous and they seek premature disclosure of expert opinion. In opposition, Defendant argues the accompanying Form Interrogatory 17.1 will disclose the identity of Defendant’s experts and the facts and documents they relied upon. However, the requests are directed at Defendant and “[a] party to an action may not necessarily avoid responding to a request for admission on the ground that the request calls for expert opinion and the party does not know the answer.” (<i>Bloxham v. Saldinger</i> (2014) 228 Cal.App.4th 729, 751.) Defendant is bound “to make a reasonable investigation of the facts before